

ELIZABETH II



1970 CHAPTER xxiii

An Act to confer further powers upon the mayor, aldermen and burgesses of the borough of Gosport; to make further provision for the improvement, local government and finance of the borough; and for other purposes.
[29th May 1970]

WHEREAS—

(1) The borough of Gosport in the county of Hampshire is under the local government of the mayor, aldermen and burgesses of that borough:

(2) It is expedient to make further provision with reference to the improvement, local government and finance of the said borough:

(3) It is expedient that the other provisions contained in this Act be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

(5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 1933 c. 51. have been observed:

(6) A map marked “ The Clifflands ” showing coloured green the land known as the Clifflands in the borough was in the month of November, 1969, deposited in the office of the Clerk of the Parliaments, House of Lords, and in the Private Bill Office of the House of Commons and in the office of the town clerk of the borough:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the Gosport Corporation Act 1970.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Parks, cemeteries and other municipal property.

Part III.—Public health.

Part IV.—Superannuation.

Part V.—Finance and miscellaneous.

Part VI.—General.

Interpretation. 3.—(1) In this Act the several words and expressions to which meanings are assigned by section 110 and section 343 of the Act of 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

1933 c. 51. “ the Act of 1933 ” means the Local Government Act 1933;

1936 c. 49. “ the Act of 1936 ” means the Public Health Act 1936;

1939 c. xxiv. “ the Act of 1939 ” means the Gosport Corporation Act 1939;

“ the borough ” means the borough of Gosport;

“ the Corporation ” means the mayor, aldermen and burgesses of the borough;

“ the council ” means the council of the borough;

“ daily fine ” means a fine for each day on which an offence is continued after conviction therefor;

PART I
—cont.

“ enactment ” includes an enactment in this Act or in any general or local Act and any order, byelaw, scheme or regulation for the time being in force within the borough;

“ general rate fund ” means the general rate fund of the borough;

“ magistrates’ court ” has the same meaning as in the Magistrates’ Courts Act 1952;

1952 c. 55.

“ the Minister ” means the Minister of Housing and Local Government.

(3) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any enactment including this Act.

PART II

PARKS, CEMETERIES AND OTHER MUNICIPAL PROPERTY

4.—(1) Notwithstanding the provisions of any enactment, the Corporation may take down and remove the pier buildings as defined in the Act of 1939.

Power to
remove pier
buildings.

(2) The Corporation may sell the structure and materials of the said pier buildings and apply the proceeds for any purpose for which capital money may properly be applied.

(3) Nothing in the Act of 1939 shall prevent the Corporation or any other person from selling, leasing or otherwise disposing of the whole or any part of the said pier buildings or developing the same or using the same for any purpose.

5.—(1) For the purpose of providing a parking place under section 28 of the Road Traffic Regulation Act 1967 the Corporation may, with the consent of the Minister, utilise any part of a park, pleasure ground or open space provided by them or under their management and control:

Parking
places in
parks, etc.
1967 c. 76.

Provided that the part of any park, pleasure ground or open space utilised under this section shall not exceed one-eighth of the total area thereof, or one acre, whichever is the less.

(2) In this section “ open space ” has the same meaning as in the Open Spaces Act 1906.

1906 c. 25.

PART II
—cont.
Golf courses.

6.—(1) The Corporation may within or outside the borough provide a golf course, and for that purpose may provide such buildings, and execute such works, as may be necessary or expedient.

(2) References in the following provisions of this section to a golf course provided under this section shall include references to any buildings provided, or works executed, under the foregoing subsection, and to anything with which any such golf course or building is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) The Corporation may either—

- (a) themselves manage a golf course provided under this section, making such reasonable charges for the use thereof, or admission thereto, as they think fit; or
- (b) let it, or any part thereof, for such consideration, and on such terms and conditions, as they think fit.

(4) The Corporation may—

- (a) at a golf course provided under this section, provide and sell refreshments of all kinds, subject to the provisions of all enactments relating thereto;
- (b) enter into any agreement or arrangement for the provision and sale of refreshments as aforesaid;
- (c) grant, upon such terms and conditions, and for such period, as they think fit, the right so to provide and sell refreshments;
- (d) by themselves, or any person appointed by them in that behalf, apply for, and hold, licences for the sale of intoxicating liquor at any such golf course.

(5) The Corporation may make byelaws for regulating the use of golf courses provided under this section, whether within or outside the borough, and the conduct of persons using them or resorting thereto.

Saving for
trusts.

7. No power conferred upon the Corporation by either of the two last foregoing sections shall be exercised in such a manner—

- (a) as to be at variance with an express trust subject to which land or a building is held, managed or controlled by the Corporation, without an order of the High Court, or of the Charity Commissioners, or of the Secretary of State, or, where the trust instrument reserves to the donor, or any other person, the power to vary the trust, without the consent of the donor or that other person; or

- (b) as to contravene a covenant or condition subject to which a gift or lease of land or a building has been accepted by, or granted to, the Corporation, without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition.

PART II
—cont.

8.—(1) The Corporation may agree with any person, in consideration of the payment of a sum by him, to maintain, for a period fixed by the agreement, a grave or tombstone in a burial ground or crematorium provided by the Corporation.

Agreements to
maintain
graves and
tombstones.

(2) In this section—

- “ burial ground ” includes a cemetery;
“ grave ” includes a grave space, niche or urn;
“ tombstone ” includes a monument or other memorial of a deceased person.

9.—(1) The powers of the Corporation in relation to a burial ground maintainable by them shall include power—

Extension of
power to
maintain burial
grounds.

- (a) to put, and keep, in order any memorial therein;
(b) to level any grave therein;
(c) to remove the whole or any part of a memorial therein;
(d) to alter the position of any such memorial.

(2) Before exercising a power conferred by paragraph (b), (c) or (d) of the foregoing subsection the Corporation shall—

- (a) publish a notice of their intention to do so once in each of two successive weeks in a local newspaper circulating in the borough, with an interval between the dates of publication of not less than six clear days;
(b) display a notice thereof in a conspicuous position in the burial ground; and
(c) serve a notice thereof upon the owner of the grave, or upon a relative of a deceased person whose remains are interred therein, if after reasonable inquiry the name and address of the owner, or of a relative of such a person, can be ascertained.

(3) Each of the notices shall—

- (a) contain brief particulars of the Corporation's proposals, and specify an address at which full particulars of the proposals can be obtained, unless the brief particulars are of proposals incapable of further statement;
(b) specify the date on which it is intended that the Corporation will begin to carry out the proposals, which shall be not earlier than the fourteenth day after the date of

PART II
—cont.

the later of the two publications, or than the twenty-first day after the date on which the notice in the burial ground is first displayed, or, where notice is required to be served, than the twenty-first day after the date of service, whichever is the latest; and

(c) state the effect of the next following subsection.

(4) If notice of objection to a proposal, and of the ground thereof, is given to the Corporation before the date specified under paragraph (b) of the last foregoing subsection, that proposal shall not be carried out without the consent of the Minister, unless the notice is withdrawn.

(5) The Corporation may put to such use as they think appropriate, or destroy, any memorial removed under this section, unless it is claimed and removed by the person claiming it or some person acting on his behalf within three months after the date of the earlier of the two publications of the notice required by paragraph (a) of subsection (2) of this section, or, where notice has been served under paragraph (c) thereof, after the date of such service, whichever is the later.

(6) Where a memorial is removed by the Corporation under this section, the Corporation may erect at their own expense, in substitution, a memorial of a value not exceeding twenty-five pounds.

(7) The Corporation shall cause a record to be made of each memorial taken from the burial ground under this section containing—

(a) a copy of any inscription on it; and

(b) if it is intended to preserve the memorial, a statement showing where it has been taken to;

and shall deposit a copy of the record with the Registrar General.

(8) (a) Nothing in the foregoing provisions of this section shall relieve the Corporation from any obligation to which they are subject apart from those provisions to obtain for any work a faculty or licence of a consistory court.

(b) Subsections (2) to (4) of this section shall not have effect in relation to any work for which the Corporation obtain such a faculty or licence; and subsection (5) thereof shall not have effect in relation to any memorial for whose removal such a faculty or licence was obtained.

(9) In this section—

“burial ground” includes a cemetery;

“grave” includes a grave space;

“ memorial ” means any object erected, placed or planted for the commemoration of the dead, and includes any wall, kerb or railing protecting, enclosing or marking a grave or memorial.

PART II
—cont.

10.—(1) In this section—

“ the Commission ” means the Commonwealth War Graves Commission;

“ Commonwealth war burial ” means a burial of any officer or man of the naval, military or air forces of His Majesty fallen in the war of 1914 to 1921 or in the war of 1939 to 1947.

For pro-
tection of
Common-
wealth
War Graves
Commission.

(2) In relation to any burial ground to which the provisions of section 9 (Extension of power to maintain burial grounds) of this Act apply and in which there are situated any Commonwealth war graves relating to the war of 1914 to 1921 or to the war of 1939 to 1947, the Corporation shall—

(a) not later than the date upon which such notice is first published in a newspaper circulating in the borough serve upon the Commission a copy of any notice which the Corporation are required to publish pursuant to the said section 9;

(b) give written notification to the Commission of their intention to apply for a faculty or licence of a consistory court for the purposes of exercising a power conferred by paragraph (b), (c) or (d) of subsection (1) of the said section 9;

and in any such case shall have due regard to any written representations made by the Commission within a period of one month from the service of the notice or the giving of the notification, as the case may be.

(3) The Corporation shall not in pursuance of the powers of the said section 9 remove any memorial placed or erected over any Commonwealth war grave unless they have first given to the Commission satisfactory assurances in writing in regard to all or such of the following matters as the Commission consider appropriate, namely:—

(a) that no other memorial shall be placed or erected over such grave;

(b) that any Commonwealth war burial in such grave shall at all times be protected from interference or disturbance otherwise than interference or disturbance authorised by a licence granted by the Secretary of State or authorised by a faculty or licence of a consistory court after prior notification to the Commission of the application for any such licence or faculty;

PART II
—cont.

- (c) that in the case of any headstone placed or erected by the Commission over any such grave such memorial shall be removed only in accordance with such arrangements and in such manner including disposal of the memorial as shall be agreed in writing between the Corporation and the Commission.

(4) If a Commonwealth war burial would be affected by a consent given by the Minister under subsection (4) of the said section 9, the Corporation shall, not later than the date on which the matter is referred to the Minister, inform the Commission in writing of such reference and the Minister shall consider any representations submitted to him by the Commission within a period of twenty-eight days from the date of reference to the Minister.

Further
power to
make
byelaws.

11.—(1) The Corporation may make byelaws to regulate the Clifflands and such byelaws may provide for the removal from those lands of any person infringing any such byelaw by any authorised officer of the Corporation or constable.

(2) In this section “the Clifflands” means the land in the borough known as the Clifflands and shown coloured green on the map referred to in the Preamble to this Act.

PART III

PUBLIC HEALTH

Power to
order
alteration of
domestic
chimneys.

12.—(1) If a magistrates’ court is satisfied upon a complaint by the Corporation that any smoke, gas or vapour from a chimney, flue or pipe of a building or structure forming part of, or within the curtilage of, a house in the borough is prejudicial to the health of any of the inhabitants of the borough or a nuisance, the court may make an order requiring the owner of the chimney, flue or pipe, within such times as may be specified in the order—

- (a) to cause it to be raised to a height so specified; or
- (b) to cause such other means for remedying the cause of complaint to be adopted as the court thinks fit:

Provided that the court shall not make an order under this section unless it is satisfied that the work to be done in pursuance of the order need not involve an expenditure exceeding fifty pounds.

(2) If any person fails to comply with an order made under this section he shall be liable to a fine not exceeding fifty pounds and to a daily fine not exceeding five pounds.

(3) A court shall not make an order under this section in respect of—

- (a) a building for the time being included in a list published by the Minister of Public Building and Works under

any enactments for the time being in force with respect to ancient monuments without the consent of that Minister; or

PART III
—cont.

- (b) a building for the time being included in a list of buildings of special architectural or historic interest compiled by the Minister under section 32 of the Town and Country Planning Act 1962, not being a building to which paragraph (a) of this subsection applies, without the consent of the Minister. 1962 c. 38.

(4) Section 301 of the Act of 1936 shall apply to an order made under this section as if it were an order under the Act of 1936.

13.—(1) The provisions of Part III and Part V of the Act of 1936 (which relate to nuisances and offensive trades and to the prevention, notification and treatment of disease) in their application to the borough shall apply in relation to houseboats used for human habitation as they apply in relation to other premises and as if a houseboat used for human habitation were a house or building so used. Power as to houseboats.

(2) For the purposes of the said Part III, a houseboat used for human habitation—

- (a) which is in such a state, or so overcrowded, as to be prejudicial to the health of the inmates; or
- (b) the use of which, by reason of the absence of proper sanitary accommodation or otherwise, gives rise, whether on the site or on other land, to a nuisance or to conditions prejudicial to health;

shall be a statutory nuisance, and the expression “occupier” in relation to a houseboat shall include any person for the time being in charge thereof.

(3) The Corporation may make byelaws for promoting cleanliness in, and the habitable condition of, houseboats used for human habitation, for preventing the spread of infectious disease by the occupants or other users thereof and generally for the prevention of nuisances in connection therewith.

(4) The powers of a court before which proceedings are brought—

- (a) in respect of a statutory nuisance caused by, or arising in connection with, a houseboat used for human habitation; or

PART III
—cont.

(b) in respect of any contravention of byelaws made under this section;

shall include power to make an order prohibiting the use for human habitation of the houseboat in question at such places, or within such area, as may be specified in the order.

PART IV

SUPERANNUATION

Interpretation
of Part IV.

14.—(1) In this Part of this Act, except as otherwise expressly provided or unless the context otherwise requires, words and expressions to which meanings are assigned by the Act of 1937 have the same respective meanings, and—

1937 c. 68.

“the Act of 1937” means the Local Government Superannuation Act 1937;

“contributor” means a contributor to the fund in respect of whom the Corporation are the employing authority;

“death grant” and “transfer value” have, in relation to a contributor, the meanings assigned to them respectively by the Regulations of 1954;

“the fund” means the superannuation fund maintained by the Corporation under Part I of the Act of 1937;

“the principal Acts” means the Local Government Superannuation Acts 1937 to 1953;

“return of contributions” in relation to a person who has ceased to be a contributor includes any sum paid to, or in respect of, him by way of interest on the amount of the contributions returned to him;

“superannuation benefit” includes any benefit which is or may be granted in pursuance of the principal Acts or the regulations made thereunder or in pursuance of any local Act or scheme or local Act scheme.

(2) Without prejudice to the provisions of section 17 (Power to require designated sums to be paid to trustees) and section 18 (Transfers of employment) of this Act, the provisions of the principal Acts and the regulations made thereunder shall apply and have effect in relation to a person who is a contributor on or after the date of the coming into force of this Part of this Act subject to the extensions, modifications and applications of the said Acts and regulations contained in this Part of this Act.

15. This Part of this Act shall come into force on 1st September, 1970.

PART IV
—cont.

Commence-
ment of
Part IV.

16.—(1) Where, after the coming into force of this Part of this Act, the employment of a contributor who has attained the age of fifty-five years and completed ten years' service is terminated by the Corporation in the interests of efficiency before he has attained the age of sixty-five years, the contributor shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment:

Benefits in
certain cases
of premature
retirement.

Provided that this subsection shall not apply to a contributor if, not later than one month after ceasing to hold his employment, he notifies the Corporation in writing that he does not wish this subsection to apply to him.

(2) Where, after the coming into force of this Part of this Act, a contributor who has attained the age of fifty-five years and completed twenty-five years' service but has not attained pensionable age terminates his employment at his own request, then superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment shall be payable in lieu of any entitlement to a return of contributions under section 10 of the Act of 1937:

Provided that—

- (i) where a person has become entitled to a superannuation benefit by virtue of this subsection, he may, by notice given to the Corporation in writing at any time before any payment on account of such benefit has been made to him, elect that this subsection, and any rights to which he is entitled thereunder, shall cease to apply in relation to him as from the date on which such notice is given;
- (ii) unless the Corporation otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age.

(3) Where a person who has become entitled to a superannuation benefit by virtue of subsection (2) of this section dies before any payment on account of such benefit has been made to him, the like benefits shall, as from the date of his death, be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

(4) For the avoidance of doubt it is hereby declared that, where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed

PART IV
—cont.

to be a superannuation benefit for the purpose of the definition of “service” in subsection (1) of section 40 of the Act of 1937, whether or not any payment has been made to him on account thereof.

1953 c. 25.

(5) For the purposes of section 16 of the Local Government Superannuation Act 1953, and of any rules made thereunder, a person entitled to a superannuation benefit by virtue of subsection (2) of this section shall be deemed to cease to hold his employment on the day immediately preceding the day on which that benefit first becomes payable to him, and a superannuation benefit as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

(6) In this section “pensionable age” in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing to hold his employment, become entitled to superannuation benefits by reason of having, otherwise than under this section, attained such age and completed such period of service as is prescribed in the principal Acts or the Local Government Superannuation (Benefits) Regulations 1954, as the case may be.

Power to
require
designated
sums to be
paid to
trustees.

17.—(1) A contributor may at any time, by notice in writing to the Corporation given in such form as the Corporation may approve, direct—

(a) that the provisions of this section shall apply to the amount (if any) which would, but for the giving of such notice, be payable to his estate either by way of death grant or as a sum calculated by reference to the aggregate amount of his contributions to the fund, with compound interest thereon; and

(b) that any such amount (hereafter in this section and in Schedule 1 to this Act referred to as “the designated sum”), instead of being paid to his estate, shall be paid to such responsible persons, not being less than two nor more than four in number, as shall be appointed for that purpose by the Corporation (hereafter in this section and in the said Schedule 1 referred to as “the trustees”) to be held upon the trusts, and with and subject to the powers and provisions, in force under the said Schedule 1 at the date of such direction.

(2) Any direction given in accordance with this section shall be effective, and the designated sum shall accordingly be paid

to the trustees and shall be held by them upon the trusts, and with and subject to the powers and provisions, in force under the said Schedule 1 at the date of such direction.

(3) The trusts, powers and provisions set out in the said Schedule 1 may from time to time be varied by resolution of the council, but so that the trusts, powers and provisions as so varied shall only apply in relation to directions received by the Corporation after the making of such variations.

(4) Any direction given by a contributor under this section shall be irrevocable and binding on such contributor and his estate and all persons interested therein.

(5) In this section and in the said Schedule 1, “contributor” includes any person who, on or after the date of the coming into force of this Part of this Act, is a contributor to the fund, and “former contributor” shall be construed accordingly.

18.—(1) The Corporation may, in accordance with the provisions of a scheme made by them for the purposes of this section— Transfers of employment.

(a) as respects any contributor who ceases or has ceased to hold employment with the Corporation in order to enter an employment (in this paragraph referred to as “the new employment”) in relation to which interchange arrangements are not for the time being in force, if that contributor so desires, in lieu of making any such payment to him from the fund as is referred to in section 10 of the Act of 1937 (or, where such a payment has been made, if it is repaid to the fund by the contributor), either—

(i) make from the fund in respect of him a payment by way of a transfer value to the body or persons responsible for administering any superannuation scheme in connection with the new employment; or

(ii) subject to such consequential provisions as may be prescribed in the scheme, award to or in respect of him superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment with the Corporation:

Provided that no benefit shall be paid to a person by virtue of this sub-paragraph before such date as may be prescribed under the scheme; and

(b) as respects any person who enters or has entered into employment with the Corporation from an employment in relation to which interchange arrangements are not for the time being in force, receive any payment made

PART IV
—cont.

by or in respect of him to the fund, whether by way of transfer value or otherwise, and shall confer on him by virtue of such payment such rights under the principal Acts, and the regulations made thereunder, as may be prescribed under the said scheme.

(2) A scheme made under this section shall be of no effect unless it has been approved by the Minister, and the Minister may approve any such scheme, either with or without modifications, after consultation with such organisations as are, in his opinion, representative of the interests concerned.

(3) A scheme made under this section may be amended or revoked by a subsequent scheme.

(4) Any body or persons responsible for administering a superannuation scheme in connection with an employment as respects which interchange arrangements are not for the time being in force, may make any amendments or modifications of that superannuation scheme which may be desirable to facilitate the operation of any scheme made by the Corporation under this section.

(5) Where any provision of the principal Acts or the regulations made thereunder which has effect in relation to a contributor contains a reference to a transfer value, such reference shall be deemed (as may be appropriate) to include a reference to any such payment by way of a transfer value as is referred to in sub-paragraph (i) of paragraph (a) of subsection (1) of this section or to such payment by way of a transfer value or otherwise as is referred to in paragraph (b) of subsection (1) of this section.

1948 c. 33.

(6) In this section “interchange arrangements” means any arrangements, whether by virtue of rules made under section 2 of the Superannuation (Miscellaneous Provisions) Act 1948 or by virtue of any other enactment apart from this section, providing for the preservation of superannuation rights following a change of employment.

Extension of
foregoing
sections.

19.—(1) The Corporation may, at the request in writing of any other employing authority, being the employing authority of any person who participates in the benefits of the fund, determine that, subject to the provisions of this section and to such terms and conditions and from such date as may be agreed between the Corporation and the employing authority, all or any of the provisions of the three last foregoing sections of this Act, and of any scheme made under section 18 (Transfers of employment) of this Act, shall extend and apply in relation to that person.

(2) Any employing authority may make any such request to, and enter into and carry into effect any such agreement with,

the Corporation as is mentioned in subsection (1) of this section notwithstanding anything contained in any enactment; and, where under any enactment or any agreement made under an enactment provision is made for expenditure to be reimbursed by an employing authority to the fund, such provision shall extend and apply in a like manner to any expenditure incurred under any of the said foregoing sections or the said scheme in pursuance of the provisions of this section.

PART IV
—cont.

(3) In this section any reference to a person shall be deemed to include a reference to any class or description of persons.

PART V

FINANCE AND MISCELLANEOUS

20.—(1) The Corporation may borrow—

Power to
borrow.

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946 c. 58. 1946.

21. In addition to any other method by which the Corporation may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer.

Power to
raise money
by bearer
bonds.

22.—(1) Any method by which the Corporation are empowered by any enactment (including the last foregoing section) to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

Power to
raise money
abroad.

PART V
—cont.

(2) (a) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury and subject to such conditions as the Treasury may impose.

(b) The enactments empowering the Corporation to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there were substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted where necessary to produce an amount which the Corporation consider appropriate having regard to all the circumstances of the transaction).

Loans for
erection of
buildings, etc.

23.—(1) The Corporation may advance money to—

(a) any person for the purpose of enabling or assisting him to purchase or lease any land in the borough; or

(b) the owner or lessee of—

(i) any land in the borough; or

(ii) any land (whether within or outside the borough) acquired from or leased by the Corporation;

for the purpose of enabling or assisting him to build on such land or to extend or improve any existing building thereon:

Provided that any such advance shall not exceed nine-tenths of the amount which in the opinion of the Corporation will be the market value of the interest of the borrower in the land after the purpose of the loan has been effected.

1963 c. 29.

(2) The provisions of subsections (2), (4) and (5) of section 3 of the Local Authorities (Land) Act 1963 (which section empowers local authorities to make advances for the erection of buildings on land sold or let by them) shall apply in relation to an advance made under subsection (1) of this section, and for that purpose those provisions shall have effect subject to the substitution for references therein to an advance made under the said section 3 of references to an advance made under subsection (1) of this section and to any other necessary modifications.

(3) The borrower may with the permission of the Corporation (which shall not be unreasonably withheld) at any time transfer his interest in the land in respect of which the advance was made but any such transfer shall be made subject to the terms of the instrument securing the advance.

(4) Any authorised officer shall have power at all reasonable times to enter any building in respect of which an advance has

been made under this section for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are being complied with.

PART V
—cont.

(5) In this section—

“lessee” includes a person to whom the Corporation have agreed to grant a lease and the expression “lease” shall be construed accordingly; and

“owner” means the person (other than a mortgagee not in possession) entitled, either with or without the consent of any other person, to dispose of the fee simple of the land.

24.—(1) Where the Corporation have paid in advance to any employee the amount of his emoluments and such employee dies before the expiration of the period in respect of which such payment is made the Corporation shall not be required to demand the return of such portion thereof not exceeding twenty-five pounds as the Corporation may determine.

Recovery of
sums paid to
officers, etc.

(2) In any case where the Corporation exercise the powers of the foregoing subsection they shall transfer from the general rate fund or the housing revenue account (as the case may be) to the fund the amount which but for the exercise of those powers would have been returned to the fund.

(3) In this section—

“employee” means any officer or servant of the Corporation or any officer or servant whose salary or wages is or are payable by the Corporation and includes any former officer or servant who is in receipt of a superannuation allowance or benefit payable out of the fund; and

“emoluments” means in relation to an officer or servant his salary or wages (as the case may be) and in relation to a former officer or servant in receipt of a superannuation allowance or benefit the amount of that allowance or benefit.

25.—(1) (a) The Corporation may use for such time as they may think fit lands and buildings within or outside the borough as a terminal or terminals for hovercraft, hydrofoil vessels and similar craft or vessels, and may erect or adapt on any lands and may maintain and manage buildings, structures, slipways and other works for use in connection with such hovercraft or vessels and may make reasonable charges in respect of the use of such works.

Power to
provide
facilities for
hovercraft,
hydrofoil
vessels, etc.

(b) The Corporation may at any such terminal provide such plant, facilities, appliances and conveniences as may be requisite or expedient for the operation, equipment, maintenance, repair and use of such hovercraft or vessels.

PART V
—cont.

(2) Without prejudice to the generality of the provisions of subsection (1) of this section, the Corporation may exercise the following powers at any terminal provided by them in accordance with those provisions:—

- (a) they may provide and maintain parking places, cloak-rooms, waiting rooms, refreshment rooms, shelters, offices, information bureaux and displays, lavatories, conveniences and other similar accommodation;
- (b) they may let the terminal, or any part thereof, for such consideration and on such terms and conditions as they think fit;
- (c) they may make reasonable charges for the use of, or let on hire to any person, any accommodation so provided, or any building or structure;
- (d) they may make regulations as to the use of such parking places and accommodation.

(3) In this section—

“hovercraft” means a vehicle which is designed to be supported when in motion wholly or partly by air expelled from the vehicle to form a cushion of which the boundaries include the ground, water or other surface beneath the vehicle;

“hydrofoil vessel” means a vessel, however propelled, designed to be supported on foils.

Power to
execute
works on
seashore.

26.—(1) The Corporation may, on any part of the seashore vested in them or on any other part of the seashore within the borough with the consent of any person having right thereto—

- (a) construct landing stages, jetties, footpaths, roads and promenades; and
- (b) execute any works for the purpose of preserving, improving and restoring amenity.

(2) The Corporation may make byelaws to regulate any landing stage or jetty constructed under this section and such byelaws may provide for the removal from the landing stage or jetty of any person infringing any such byelaw by any authorised officer or constable.

(3) In this section “seashore” includes all parts of the beach or shore above and below high-water mark and (where a promenade or esplanade exists) between the promenade or esplanade and low-water mark.

27. In relation to the works authorised by the two last foregoing sections, nothing in this Act shall—

- (a) affect the application to any such work of—
 - (i) the Dockyard Ports Regulation Act 1865 and any rule or regulation made thereunder; or

Saving for
Dockyard
Ports
Regulation
Act 1865,
Coast
Protection
Act 1949 and
Harbours Act
1964.
1865 c. 125.

(ii) sections 34, 35 or 36 of the Coast Protection Act 1949; or

PART V
—cont.

(b) exempt the Corporation from the provisions of section 9 of the Harbours Act 1964.

1949 c. 74.
1964 c. 40.

28. The indication by the Corporation for the purposes of section 102 (Prohibition of persons vehicles etc. on grass margins) of the Act of 1939 may be given in respect of a street by the erection of one or more notices conspicuously placed in that street.

Amendment
of section 102
of Act of
1939.

29.—(1) The Corporation may provide services and facilities for the processing of data by computer or by any other equipment of the Corporation which the Corporation may possess for any person and the Corporation may make such charges as may be agreed for the provision of those services and facilities.

As to use of
computer
equipment of
Corporation.

(2) Information obtained by any employee of the Corporation in the course of the provision of such services or facilities shall not without the consent of the person from whom it was obtained be disclosed by that employee except for the purpose of performing his duties in relation to those services and facilities or in such cases as may be required by law.

30. Nothing in this Part of this Act shall be taken as exempting the Corporation from the provisions of the Exchange Control Act 1947.

Saving for
Exchange
Control Act
1947.

PART VI

1947 c. 14.

GENERAL

31. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Secretary of State except that in the case of byelaws made under section 13 (Power as to houseboats)—

Confirming
authority for
byelaws.

(a) for promoting cleanliness in, and the habitable condition of, houseboats and generally for the prevention of nuisances in connection therewith, the confirming authority shall be the Minister; and

(b) for preventing the spread of infectious disease by the occupants or other users thereof, the confirming authority shall be the Secretary of State.

32.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

Local
inquiries.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “ department ” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act.

PART VI

—cont.

1946 c. 31.

(3) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

Restriction on
right to
prosecute.

33. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Corporation.

Appeals.

34.—(1) Section 300 of the Act of 1936 shall apply to appeals to a magistrates’ court under this Act; and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement, refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement, refusal or decision, or to use premises for any purpose for which they were lawfully used up to that time;

then, until the time for appealing has expired, or, if an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work, or take the action, nor shall the Corporation themselves execute the work or take the action; and
- (ii) that person may carry on that business, and use those premises for that purpose.

Protection of
members and
officers of
Corporation
from personal
liability.
1875 c. 55.

35. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee of a local authority or a sub-committee of such a committee.

For protec-
tion of
certain
statutory
undertakers.

36. For the protection of the undertakers the provisions of this section shall, unless otherwise agreed in writing between the Corporation and the undertakers, apply and have effect:—

- (1) In this section unless the subject or context otherwise requires—

“apparatus” means—

- (a) electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to or

1882 c. 56.

maintained by the Central Electricity Generating Board or the Southern Electricity Board;

PART VI
—cont.

(b) mains, pipes or other apparatus belonging to or maintained by the Gas Council or the Southern Gas Board;

and includes any works for the lodging therein of apparatus;

“ operational land ” means in relation to the undertakers land which is used for the purpose of the carrying on of their undertakings and land in which an interest is held for that purpose, not being land which, in respect of its nature and situation, is comparable rather with land in general than with land which is used, or in which interests are held, for the purpose of the carrying on of statutory undertakings;

“ the undertakers ” means—

the Gas Council;

the Southern Gas Board;

the Central Electricity Generating Board;

the Southern Electricity Board;

or any of them, as the case may be:

- (2) Nothing in section 26 (Power to execute works on seashore) of this Act shall relieve the Corporation from liability for damage caused by them to any apparatus in the exercise of the powers of the said section and the said powers shall be so exercised as not to obstruct or render unreasonably inconvenient the access to any apparatus or operational land:
- (3) (a) Any difference which may arise between the Corporation and the undertakers under this section shall be determined by a single arbitrator to be appointed by agreement between the parties or, in default of agreement, by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other party;
- (b) In settling any difference under this section, the arbitrator shall have regard to any duty or obligation which the undertakers may be under in respect of any apparatus, and may, if he thinks fit, require the Corporation to execute any temporary or other works so as to avoid, so far as may be reasonably possible, interference with any purpose for which the apparatus is used.

PART VI

—*cont.*

Application of
general provi-
sions of Act
of 1936.

Costs of
Act.

37. The sections of the Act of 1936 mentioned in Schedule 2 to this Act shall have effect as if references therein to that Act included references to this Act.

38. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

SCHEDULES

SCHEDULE 1

Section 17.

TRUSTS APPLICABLE TO DESIGNATED SUMS

The trustees shall stand possessed of the designated sum to which a contributor has directed that section 17 (Power to require designated sums to be paid to trustees) of this Act shall apply and the income thereof upon the following trusts, and with and subject to the following powers and provisions, that is to say:—

- (1) During the period of twenty-one years from the death of the former contributor, the trustees may pay or apply the designated sum and the income thereof, or any part thereof, respectively to, or for the benefit of, all or any one or more exclusively of the other or others of the following persons:—

- (a) the widow or widower of such former contributor;
- (b) the grandparents of such former contributor and the grandparents of the widow or widower of such former contributor and the grandparents of any previous or deceased wife or husband of such former contributor;
- (c) the issue of such former contributor;
- (d) any other issue of any of the grandparents referred to in sub-paragraph (b) of this paragraph; and
- (e) the person or persons (if any, and whether of full age or not) to whom such former contributor has at any time put himself in loco parentis or of whose person or property such former contributor has at any time been guardian;

in such shares and in such manner as the trustees shall in their absolute discretion from time to time determine, and so that the trustees may, if they think fit, pay any sum to the parent or guardian of any infant to be applied for the benefit of such infant without seeing to the application thereof:

- (2) In addition to the powers conferred on them by virtue of paragraph (1) of this schedule during the said period of twenty-one years, the trustees may at any time pay or apply the designated sum and the income thereof, or any part thereof respectively to, or for the benefit of, any person who in the opinion of the trustees was wholly or in part dependent on the earnings of such former contributor at his death, in such manner as the trustees shall in their absolute discretion think fit:
- (3) Subject as aforesaid, the designated sum and the income thereof, or so much thereof respectively as shall not have been paid or applied under the powers conferred by the foregoing

SCH. 1
—cont.1925 c. 23.
1952 c. 64.

provisions of this schedule, shall be paid to such person or persons (other than the Crown, the Duchy of Lancaster or the Duke of Cornwall) as would at the death of such former contributor have become entitled thereto under the Administration of Estates Act 1925, as amended by the Intestates' Estates Act 1952, or any statutory modification or re-enactment thereof in force at the death of such former contributor if such former contributor had died possessed thereof intestate and domiciled in England and solvent, and so that such persons, if more than one, shall take in such shares and manner in which they would have taken under the provisions of the said Act or Acts and subject to the conditions therein contained:

- (4) In this schedule "grandparents" and "issue" shall be construed as if the step-child, adopted child or illegitimate child of any person was that person's child, and "issue" includes issue in any degree.

Section 37.

SCHEDULE 2

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304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.
341	Power to apply provisions of Act to Crown property.

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Gosport Corporation Act 1970

CHAPTER xxiii

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